



Superior Court of California County of San Benito

Tentative Decisions for August 12, 2026

Courtroom #1: Judge J. Omar Rodriguez

FL-25-00222 Brown, Kelley vs. Zuniga, Camille Kristine

Respondent's Request for Order seeking Spousal Support is DENIED. Temporary spousal support requires both a showing of need by the supported spouse and ability to pay by the supporting spouse. (*In re Marriage of Pletcher* (2021) 68 Cal. App. 5th 906, 913.) Here, the parties' incomes are comparable. Petitioner's gross monthly income ranges from approximately \$9,143 to \$10,935 depending on overtime, shift differentials, and other variable compensation. Respondent receives a base gross monthly salary of \$8,750 as a Manager with Silicon Valley Real Estate Group, plus a \$450 monthly stipend, and holds a California Real Estate Salesperson License with the capacity to earn commissions and bonuses.

Additionally, the guideline calculation for spousal support indicates that spousal support shall be set at \$0. A copy of the guideline calculation is attached below and incorporated into this order.

2026

Guideline Summary

Monthly Figures

Fixed Shares	Husband	Wife	Monthly Figures		Cash Flow	
Number of children	0	0	2026		Combined net spendable	14927
Percent time with NCP	0.00%	0.00%				
Filing status	SINGLE	HH/MLA	Nets (adjusted)		Husband	
Number of exemptions	1	1	Husband	7881	Payment cost/benefit	-0
Wages and salary	14845	7286	Wife	7046	Net spendable income	7881
Self employed income	0	71	Total	14927	Federal income tax	2286
Other taxable income	0	1501	Support		Federal employment tax	1136
TANF CS received	0	0	Addons	0	State income tax	884
Other nontaxable income	0	0	Guideln CS	0	State employment tax	193
New spouse income	0	0	S.Clara SS	0	Total taxes	4499
Employee 401-k contribution	0	0	Total	0	Federal filing status	SINGLE
Adjustments to income	0	0			State filing status	SINGLE
SS paid prev marriage	0	0			Wife	
CS paid prev marriage	391	0			Payment cost/benefit	0
Health insurance	578	0			Net spendable income	7046
Other medical expenses	0	0			Federal income tax	913
Property tax expenses	0	0			Federal employment tax	567
Ded interest expense	0	0			State income tax	237
Contribution deduction	0	0			State employment tax	95
Misc tax deductions	0	0			Total taxes	1812
Qualified business income deduction	0	0			Federal filing status	HH/MLA
Required union dues	86	0			State filing status	HH/MLA
Mandatory retirement	1410	0				
Hardship deduction	0	0				
Other GDL deductions	0	0				
Child care expenses	0	0				
FC 4055 checking: ON						
Per Child Information						
DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children	0 - 0	0	0	0 Husband	0 Husband	0 Husband

FL-25-00236 Barajas, Rebecca Yvonne vs. Barajas, Vicente

Respondent's Request for Order is DENIED as he failed to file an income and expense declaration and failed to provide a change of circumstances. All hearings involving child, spousal, or domestic partner support, both parties must complete, file, and serve a current Income and Expense Declaration (form FL-150) on all parties. (Cal. Rule of Court Rule 5.260.) Additionally, the supporting declaration submitted in a request to change a prior child, spousal, or domestic partner support order must include specific facts demonstrating a change of circumstances. (Ibid.)

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****Please contact Judicial Courtroom Assistant, Maria Pantoja, at
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any objections or concerns.**